

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
ORIN THOMAS

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
3122 Snyder Avenue
Brooklyn, New York 11226

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN AND JANE
DOE(S) 1-10 OF THE 67th PRECINCT,

Defendants,
-----X

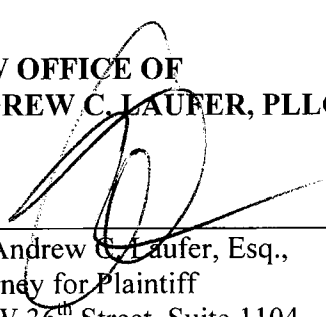
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
January 15, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

NGUYEN LEFTT, P.C.



By: Andrew Leftt

Attorney for Plaintiff
Office & P.O. Address

565 FIFTH AVENUE

22nd Floor

New York, New York 10017

(212) 256-1755

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK

100 Church Street, 4th Floor

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

c/o CITY OF NEW YORK

100 Church Street, 4th Floor

New York, New York 10007

ARRESTING OFFICERS JOHN AND JANE

DOE(S) 1-10 OF THE 67th PRECINCT

2820 Snyder Ave,

Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
ORIN THOMAS,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN AND JANE
DOE(S) 1-10 OF THE 67th PRECINCT,

Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, ARRESTING OFFICERS JOHN AND JANE DOE(S) 1-10 OF THE 67th PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.
5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That a hearing was held on October 31, 2017 by the CITY OF NEW YORK pursuant to Municipal Law 50-h.
7. That at all time herein mentioned, ARRESTING OFFICERS JOHN AND JANE DOE(S) 1-10 OF THE 67th PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.
8. That at all times herein mentioned, ARRESTING OFFICERS JOHN AND JANE DOE(S) 1-10 OF THE 67th PRECINCT were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).
9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about June 29, 2017, at approximately 10:20 p.m., Plaintiff ORIN THOMAS was lawfully at Synder Avenue and 32nd Street, in the County of Kings, State of New York.
11. At said time and place, Mr. Thomas was doing laundry at a laundromat.
12. After placing his laundry in a machine, he then proceeded to a Chinese restaurant to order takeout which he intended to consume while doing his laundry. The restaurant was located on Church Avenue between Nostrand and Rogers which is approximately two and a half blocks from the laundromat.
13. Mr. Thomas obtained his Chinese food then returned to the laundromat where he began to consume it while awaiting his laundry to be completed.

14. After consuming his food and placing his laundry in the dryer, Mr. Thomas returned home to obtain something to drink. He then sat on the steps in front of his house and waited for his laundry to dry.

15. Soon thereafter, he heard a commotion around the block from his home on Snyder Avenue. The commotion he heard was coming from 32nd Street.

16. He then proceeds to the corner of Snyder Avenue and 32nd Street to see what was happening.

17. Upon reaching the corner, he observed a melee between several people in the street.

18. Soon thereafter, the defendants appeared at the site of the melee.

19. After the police arrived, Mr. Thomas began to proceed back to the laundromat to check on his clothes.

20. As he was walking back to the laundromat, he was approached by an undercover NYPD officer.

21. The officer inquired whether Mr. Thomas knew anything about the melee. Mr. Thomas stated no.

22. The officer, without probable cause to do so, began to search Mr. Thomas.

23. Mr. Thomas stated to the officer that he couldn't search him.

24. The officer tried to search Mr. Thomas once again.

25. Mr. Thomas again told the officer that he could not do that.

26. The officer then accused Mr. Thomas of having alcohol on his breath. Mr. Thomas was then surrounded by additional uniform officers.

27. The original officer then rushes Mr. Thomas and places him in an 'under-arm bear-hug' hold causing him severe and painful injuries.

28. While in this hold, Mr. Thomas was unlawfully searched. Nothing illegal was found on Mr. Thomas's person.

29. After this unlawful and brazen search, the officers simply walking away from Mr. Thomas.

30. Immediately thereafter, Mr. Thomas called 911 and requested an ambulance.

31. He was then transported via ambulance to Kings County Hospital where he was treated in the emergency room

32. To this day, Mr. Thomas still obtains medical treatment for the injuries he sustained via the defendants unlawful actions.

33. The individual Defendants, ARRESTING OFFICERS JOHN AND JANE DOE(S) 1-10 OF THE 67th PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against him by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

34. Plaintiffs repeat and reallege each and every allegation contained above as though set forth at length herein.

35. That on or about June 29, 2017, at approximately 10:20 p.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to ARRESTING OFFICERS JOHN AND JANE DOE(S) 1-10 OF THE 67th PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

36. That on or about June 29, 2017, at approximately 10:20 p.m., Defendant THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, jointly and severally in their capacity as police officers, wrongfully stopped and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, and seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

37. That on or about June 29, 2017, Defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully detained Plaintiff, restrained him and his liberty.

38. That the said arrest, detention, and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officers, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

39. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

40. As a result of the aforesaid actions, including the detention and imprisonment of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities

secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

41. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

42. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

43. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

44. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

45. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under the laws of New York State.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

46. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

47. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices, including but not limited to the unlawful

policy and procedure of Stop, Question, and Frisk, of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

48. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

49. Defendants stop, detained, imprisoned, and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said detention and imprisonment would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

50. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

51. On or about June 29, 2017, Defendants did stop, seize, search, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the this process in an unlawful and excessive manner.

52. The Plaintiff was falsely arrested, unlawfully imprisoned, beaten, and detained without the Defendants' possessing probable cause to do so.

53. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to their person.
- b. Freedom from battery to their person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.

- e. Freedom from the use of excessive force during the arrest process.
- f. Freedom from unlawful imprisonment.

54. The Defendants subjected Plaintiffs to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

55. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate a detention and the detention should be based upon probable cause.

56. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering to his detriment.

THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE ASSAULT
AND BATTERY AND USE OF EXCESSIVE FORCE UPON PLAINTIFF

57. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

58. That on or about June 29, 2017, at approximately 10:20 p.m., Defendants, jointly and severally in their capacity as police officers, wrongfully entered, stopped, detain and seized the Plaintiff about their person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, detain, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

59. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right against being assaulted, battered, and to be free from the use of excessive force secured by the

Constitution and Laws of the United States of America, the Fourth and Fourteenth Amendments and New York State law.

60. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against his person secured by the Constitution and Laws of the United States of America, the Fifth and Fourteenth Amendments and New York State law.

61. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

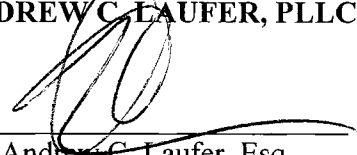
62. That by reason of the false arrest, imprisonment, detention, and beating of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

70. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

WHEREFORE, Plaintiff demand judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

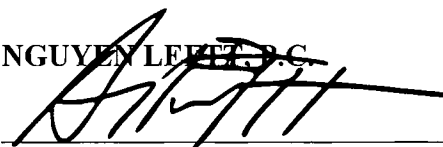
Dated: New York, New York
January 15, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
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NGUYEN LEFTT, P.C.



By: Andrew Leftt
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New York, New York 10017
(212) 256-1755

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ORIN THOMAS,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN AND JANE
DOE(S) 1-10 OF THE 67th PRECINCT,

Defendants,

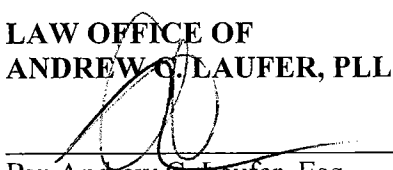
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the Plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the Plaintiff is that the Plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
January 15, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

NGUYEN LEFTT, P.C.

A handwritten signature in black ink, appearing to read 'Andrew Leftt', is written over a horizontal line.

By: Andrew Leftt

Attorney for Plaintiff

Office & P.O. Address

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22nd Floor

New York, New York 10017

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ORIN THOMAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND ARRESTING OFFICERS JOHN AND
JANE DOE(S) 1-10 OF THE 67th PRECINCT,

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer